



EUROPEAN CENTRAL BANK

EUROSYSTEM

Facilitating the exercise of investor rights

Advisory Group on Market Infrastructures for Securities and Collateral

Measures to contribute to a Savings and Investments Union

June 2026



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Executive summary

Corporate events are decisions or actions taken by entities issuing financial instruments, such as shares or bonds, that may affect investors' rights and interests. Investors require clear and timely information about these events to make informed decisions and effectively exercise their rights. Significant efforts, both regulatory and market-driven, have been undertaken over the years to enhance and facilitate the exercise of these rights, including:

- the introduction of the [Shareholder Rights Directive](#), aimed at ensuring that shareholders receive all the information they need from the company to exercise their rights effectively;
- the development of market standards for processing corporate events, thus helping to facilitate an efficient flow of information between issuers and investors.

While these measures have improved processes, gaps in complying with agreed market standards – as highlighted in the annual [Corporate Events Compliance Reports](#) prepared by the Advisory Group on Market Infrastructures for Securities and Collateral (AMI-SeCo) – undermine efficiency and hinder the seamless and timely flow of information across AMI-SeCo markets. The absence of a unified European regulatory framework safeguarding the rights of all investors, together with the lack of a single rulebook for corporate events, contributes to these challenges.

To address these challenges, this report proposes a series of measures, including:

- **Enhancing investor rights:** Extending the rights currently granted to investors in equity instruments under the Shareholder Rights Directive to include bondholders and other investors in financial instruments issued through central securities depositories (CSDs) across the EU, thereby ensuring a level playing field for all investors.
- **Strengthening legal foundations:** Converting the existing Shareholder Rights Directive into an Investor Rights Regulation to ensure the consistent application of rules across all jurisdictions.
- **Creating a single data source for corporate events:** Requiring issuers to deliver complete, accurate and timely corporate event information to their issuer CSD, enabling it to serve as a centralised and reliable source of data for the entire custody chain.
- **Eliminating optional disclosure thresholds:** Abolishing optional thresholds for the disclosure of investor information and removing the possibility of routing investor identification requests through parties other than the issuer CSD.
- **Implementing a Single Rulebook for Corporate Events:** Implementing a single rulebook for corporate events developed by the AMI-SeCo, comprising a

set of common rules and standards governing interactions between all market players across all AMI-SeCo markets.

Figure 1

Towards a savings and investments union – facilitating the exercise of investor rights



By implementing these measures, as further detailed throughout this report, the EU can address existing inefficiencies, enhance transparency and foster a more harmonised and resilient post-trade environment. These actions will also contribute to advancing the Savings and Investments Union (SIU) and the removal of the [remaining barriers to integration in securities post-trade services](#) identified by AMI-SeCo, ultimately benefiting issuers, investors and intermediaries. In the future, these measures could also be extended to additional entities, considering the emergence of digital assets and the development of a European tokenised financial ecosystem.

AMI-SeCo will continue its work on developing market standards to support the SIU objectives, in particular through its ongoing efforts to create a Single Rulebook for Corporate Events.

1 Introduction

Significant efforts, both regulatory and market-driven, have been undertaken over several years to enhance and facilitate the exercise of investor rights. These efforts have assumed increased importance in light of the European Commission's [Savings and Investments Union \(SIU\)](#) strategy which aims to create better financial opportunities for EU citizens, while enhancing the financial system's capability to connect savings with productive investments. This will lead to more choice for savers who wish to grow their household wealth and allow businesses across Europe to grow.

In December 2025 the European Commission published its [Market Integration and Supervision Package](#) to support the implementation of this strategy by, among other things:

- reducing restrictions on issuers of securities by limiting additional requirements imposed by Member States;
- simplifying cross-border processes for CSD services;
- improving access to financial instruments by enhancing connectivity among EU settlement systems;
- converting directives to regulations for more uniform rules across the EU.

Two parallel and complementary initiatives in the field of corporate events contribute to the implementation of this strategy:

- The European Commission's review of the Shareholder Rights Directive.
- AMI-SeCo's work on the creation of a Single Rulebook for Corporate Events.

1.1 Review of the Shareholder Rights Directive

The [Shareholder Rights Directive](#) protects and empowers shareholders in listed companies, ensuring that they have a say in the companies in which they invest and that their interests are represented and respected. In doing so, it aims to improve conditions for investing across the EU. The effectiveness of the Shareholder Rights Directive is currently being evaluated in response to feedback from stakeholders regarding inefficiencies in interactions between companies, their shareholders and intermediaries. A potential revision of this legislation would support the implementation of the SIU by reducing fragmentation across capital markets and driving cross-border investment by making it easier and cheaper for investors, intermediaries and issuers to operate across Member States.

This report represents AMI-SeCo's input to the review of the Shareholder Rights Directive.

1.2 Creation of a Single Rulebook for Corporate Events

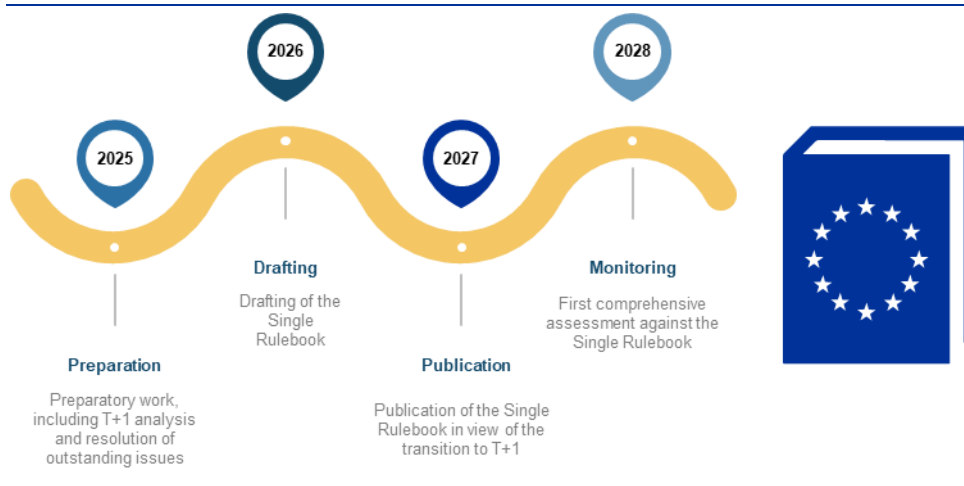
The second key pillar for enhancing investor rights is AMI-SeCo's ongoing work on the creation of a Single Rulebook for Corporate Events. The single rulebook will comprise common rules and standards for interactions between all market players and will:

- facilitate the free flow of information between issuers, investors, and intermediaries;
- support compliance with regulatory requirements by detailing the related operational processes;
- simplify the implementation of corporate event standards by serving as a single point of reference.

A first step towards the creation of a single rulebook was taken in March 2026 with the publication of the [AMI-SeCo T+1 Corporate Events Harmonised Implementation Guide](#), which sets out harmonised rules for the processing of market claims, transformations and buyer protection in a T+1 environment and will form part of the future Single Rulebook for Corporate Events. Further work in developing the Single Rulebook will take place throughout 2026.

Figure 2

Towards a single rulebook for corporate events



1.3 Structure of this report

This report outlines a series of measures designed to enhance investor rights and support the implementation of the SIU strategy. It is structured as follows:

- **Section 1** provides background information, including the importance of investor rights to the SIU strategy.

- **Section 2** identifies current barriers to the exercise of investor rights and sets out proposals on how best to address them.
- **Section 3** analyses existing investor identification processes, highlights key issues based on the findings of a detailed fact-finding exercise, and outlines measures to address them.
- The **Annex** summarises the measures proposed in this report to facilitate the exercise of investor rights.

2 Investor rights

The Shareholder Rights Directive and market standards for the processing of corporate events aim to support the exercise of investor rights by, among other things:

- ensuring that shareholders receive all necessary information from the company so that they can exercise their rights effectively;
- making it easier for shareholders residing in other Member States to participate in general meetings and vote by requiring intermediaries to facilitate the exercise of their rights, including the right to participate and vote in general meetings.
- requiring intermediaries to provide shareholders with all necessary information from the company so that they may exercise their rights effectively and to transmit to the company the information received from shareholders in relation to the exercise of those rights.

This section proposes a series of measures to support investors in exercising their rights:

- **Section 3.1** proposes extending the same rights afforded to investors in equities (shareholders) to investors in other types of instruments, supported by a harmonised definition of “end investor”.
- **Section 3.2** highlights the importance of issuers providing timely and accurate data on corporate events to establish a single, trusted “golden source” of information for investors.
- **Section 3.3** emphasises the need for the consistent application of harmonised corporate event key dates to ensure that investors receive information in a timely manner, thus enabling them to respond within reasonable time frames and by the deadlines set by issuers and intermediaries.
- **Section 3.4** identifies existing obstacles preventing investors from effectively exercising their right to participate in meeting events and proposes key improvements to enhance those rights.
- **Section 3.5** underscores the importance of having harmonised standards in place to safeguard the rights of investors in securities that are pending settlement at the time of a corporate event.

2.1 Extension of rights to all investors

The Shareholder Rights Directive aims to improve the communication by listed companies to their shareholders, in particular by facilitating the transmission of

information along the chain of intermediaries. It likewise requires intermediaries to facilitate the exercise of shareholder rights, including the right to participate and vote in general meetings, as well as financial rights such as the right to receive the distributions of profits or participate in other corporate events initiated by the issuer or third party.

To support the objectives of the Savings and Investments union, the same rights afforded to investors in equities (shareholders) should be extended to investors in other types of instruments, such as bonds. To ensure the harmonised application of these rules, create a level playing field and improve legal certainty, the revised rules should take the form of a regulation rather than a directive. For this reason, AMI-SeCo considers that the Shareholder Rights Directive should naturally evolve into an Investor Rights Regulation designed to support and facilitate the implementation of the Savings and Investments union.

Such an Investor Rights Regulation should include a common definition of “end investor”. The current absence of such a common definition across markets creates difficulties in cases where the investor is considered to be the account owner rather than the beneficial owner. Changes should therefore be introduced to ensure that shareholder identification (SI) requests always reach the last intermediary in the chain.

From a conceptual standpoint, the definition of the term “end investor” would be close to that of “beneficial owner”, meaning the person who enjoys the economic benefits and rights attached to a security. Nevertheless, in cases where securities are held by collective investment undertakings or trusts, identifying the beneficial owner can be highly complex (e.g. determining which entity has a controlling interest in a trust where fiduciary relationships exist).

The revised Shareholder Rights Directive (SRD II) focuses on operational flows rather than ownership concepts. The concept of (beneficial) ownership is not harmonised at EU level and is embedded in national legal systems. Any attempt to introduce a harmonised EU definition of ownership would require a broader revision extending beyond the scope of SRD II. Against this backdrop, for the purpose of the SRD review, the “end investor” could be defined as “the natural or legal person on whose account the securities are held with the last intermediary”.

Any introduction of new terminology should be made taking into account the objectives of the SIU, namely strengthening investment in all types of financial instruments. Therefore, the term “investor” should be favoured over the equity-specific term “shareholder”.

Measure 1: Extend the rights currently afforded to shareholders in equity instruments to investors in all types of financial instruments issued through European CSDs and enshrine those rights in an Investor Rights Regulation.

Measure 2: Introduce a harmonised definition of “end investor” as “the natural or legal person on whose account the securities are held with the last intermediary”.

2.2 Right to receive timely, complete and accurate corporate event data

The absence of a single, trusted and fully verified source of definitive information on corporate events presents a significant obstacle to the efficient functioning of European capital markets and undermines the protection of investor rights.¹ While the SRD requires issuers to provide intermediaries with timely information about corporate events – specifically, “no later than on the same business day on which the issuer announces the corporate event under applicable law” – regular AMI-SeCo monitoring exercises reveal that such information is often not provided to the issuer CSD in a timely, complete or accurate manner.

To address this issue, it is essential for issuers (or their agents) to provide complete and accurate corporate event data to the issuer CSD, which can then act as a unique and reliable source of information for the entire custody chain. Requiring issuers to deliver corporate event data using the ISO 20022 standard, as part of an Investor Rights Regulation, would resolve a critical barrier to the efficient and effective processing of corporate events. As set out in Section 2.1, this requirement should apply to issuers of all types of instruments issued through European CSDs.

The [SCoRE Corporate Actions Rulebook](#) provides a common minimum set of data that the issuer CSD must make available to its participants. This rulebook could serve as the basis for defining the minimum set of data that issuers (or their agents) must provide to the issuer CSD for each corporate event.

Once the issuer CSD receives the corporate event data, it should distribute the information without delay to all investor CSDs and other CSD participants, thus ensuring that all investors have access to the same reliable and trustworthy information and enabling them to take necessary actions in a timely manner.

To further enhance the efficiency of corporate event processing, intermediaries should communicate information using machine-readable, standardised formats that promote interoperability and straight-through processing, in line with AMI-SeCo’s roadmap for the future state of information delivery across Europe based on the adoption of the ISO 20022 standard.²

Measure 3: Establish a requirement in the Investor Rights Regulation for an issuer (or its agent) to provide complete, standard-compliant corporate event data to the issuer CSD using the ISO 20022 standard as soon as such information becomes available.

Measure 4: Require the issuer CSD to make all corporate event data available without delay to all its investor CSDs and other CSD participants to ensure that the information reaches all investors in a timely manner regardless of where they hold their securities.

¹ See also Barrier 8 of AMI-SeCo’s [report on the remaining barriers to integration in securities post-trade services](#).

² For more information, see the [AMI-SeCo ISO 20022 Migration Strategy](#).

Measure 5: Define the complete set of standard-compliant data required from issuers for each corporate event and include these data requirements in the Single Rulebook for Corporate Events.

2.3 Harmonised sequence of corporate event key dates

As set out in the [SRD II Implementing Regulation](#) (SRD II IR), the swift processing of transmissions within the chain of intermediaries – particularly when the chain consists of custodians or other operators across multiple layers, and when omnibus client accounts are used – is crucial in ensuring that information reaches shareholders across borders and that they are able to react within a reasonable time frame and within the deadlines set for corporate events by issuers and intermediaries.

The SRD II IR (Article 8(2)) includes the following minimum requirements – which, in line with the current scope of the SRD, apply only to issuers of equity instruments – regarding the sequence of transmissions, dates and deadlines relating to a corporate event other than a general meeting:

- (a) the issuer shall notify the first intermediary and to the extent necessary, other intermediaries the information of the corporate event sufficiently early as to allow the market participants to react to and transmit the information, and to allow pending trades or market claims to be processed appropriately before any relevant deadlines or the start of an election period, as applicable;*
- (b) the payment date shall be set as close as possible to the record date, issuer deadline or the deadline set by the third party initiating a corporate event, as applicable, so as to allow for the processing of payments to the shareholders as swiftly as possible;*
- (c) in a corporate event which includes options for the shareholder, the election period should be sufficiently lengthy as to allow the shareholders and intermediaries reasonable time to react;*
- (d) in a corporate event which includes options for the shareholder, the last participation date and the buyer protection deadline should precede, in this order, the issuer deadline so as to allow for the buyer claims to be processed appropriately before the close of the election period;*
- (e) in a corporate event which is conditional, the issuer shall notify the first intermediary the information regarding the outcome of the corporate event as soon as possible following the issuer deadline and before any payment is made in the corporate event.*

The market standards provide further details on these requirements, establishing a harmonised sequence of key dates and the intervals between them. However, regular monitoring exercises conducted by AMI-SeCo show that the corporate event

key date standards – and, by extension, SRD II IR requirements – are not always adhered to. Such non-compliance creates significant issues in the processing of corporate events. It also hinders the protection of investor rights, as the key dates associated with a corporate event determine the eligibility of an entitled party to receive proceeds or participate in the event.

Measure 6: Establish a requirement within the Investor Rights Regulation for issuers of all instruments issued through EEA CSDs to adhere to the harmonised sequence of key dates for corporate events, as set out in market standards, to ensure consistent and uniform application across all markets.

2.4 Right to receive meeting information and participate in meetings

As highlighted in AMI-SeCo's report on barriers to post-trade integration, investors' rights to participate and vote in general meetings are significantly hindered by fragmented and divergent national procedures and requirements. Moreover, bondholders often face further challenges in exercising their rights, as AMI-SeCo has observed that, in several markets, information relating to bondholder meetings is not provided to the issuer CSD. As a result, these investors are not informed and are unable to exercise their rights.

To address these issues, all investors in European securities should be able to fully exercise the governance rights attached to their securities through common, harmonised, pan-European operational procedures based on the provision of timely, complete and accurate data to the issuer CSD (as set out in Section 2.2). Specifically, investors who hold a position as of the record date for a (bondholder or shareholder) meeting must be able to exercise their rights in relation to that meeting, regardless of their geographic location, the custody chain, or the location of the intermediaries through which the securities are held.

The record date should be set sufficiently early to ensure that all investors holding securities on the record date have the opportunity to vote. Additionally, the record date must precede the deadline for the last intermediary, thus ensuring that end investors are able to vote based on their actual record-date positions rather than anticipated positions, which might otherwise result in rejected votes.

Measure 7: Set the record date sufficiently early to ensure that all investors holding securities on the record date are able to vote prior to the last intermediary's deadline, thereby allowing end investors to vote based on their actual record-date positions rather than anticipated positions.

Measure 8: Include standards for the processing of meetings in the Single Rulebook for Corporate Events and monitor compliance with these standards as part of AMI-SeCo's regular corporate events compliance monitoring exercise.

2.5 Right to participate in corporate events relating to pending transactions

For corporate events relating to securities transactions that have already been settled, the proceeds are distributed to the entitled party, i.e. the holder of the security. However, transactions that conclude or settle on the key dates of a corporate event may require (i) the reallocation of proceeds to the contractually entitled party, or (ii) the adjustment of pending settlement instructions to account for the corporate event. The process of managing corporate events for unsettled securities transactions as of the record date or, for elective events, the market deadline, is known as transaction management.

Transaction management applies to distributions and reorganisations as follows.

- **Market claims:** the reallocation of the proceeds of a distribution to the contractually entitled party. Market claims arise in the context of distributions.
- **Transformations:** a process by which transactions which remain pending settlement on or after the record date/market deadline, are cancelled and replaced by new transactions in accordance with the terms of the reorganisation. Transformations occur during reorganisations.
- **Buyer protection:** a process whereby a buyer, who has yet to receive the underlying securities subject to an elective corporate action, instructs its account servicer in order to receive the corporate action proceeds of their choice. Buyer protection is applicable to elective events (i.e. distributions with options, mandatory reorganisations with options and voluntary reorganisations).

To help protect the right of investors to receive corporate event proceeds and participate in elective events, harmonised processes for transaction management have been defined and included in AMI-SeCo's [T+1 Corporate Events Harmonised Implementation Guide](#).

Measure 9: Ensure that harmonised processes for transaction management are consistently applied by all parties in the custody chain to protect the right of investors to receive corporate event proceeds and to participate in elective events.

3 Investor identification

SRD II introduced the right for companies to identify their shareholders and obtain information on shareholder identity from any intermediary holding that information. Upon request, these intermediaries (such as CSDs and custodians) must transmit such information to the issuer without delay. To ensure the efficient and effective functioning of this process, market standards have been developed and are subject to regular monitoring by AMI-SeCo.

This section examines how the process functions, taking into account the findings of a detailed AMI-SeCo survey on current practices. Where relevant, measures aimed at improving the functioning of the process are proposed.

- **Section 3.1** examines differences in the scope of securities subject to disclosure requests across AMI-SeCo markets.
- **Section 3.2** analyses how disclosure requests are authenticated upon receipt and examines the issues stemming from the absence of harmonised electronic authentication processes.
- **Section 3.3** looks at the challenges posed by the possibility of routing investor identification requests through parties other than the issuer CSD.
- **Section 3.4** analyses the complications and inefficiencies arising from differing investor identification thresholds across AMI-SeCo markets.
- **Section 3.5** assesses current levels of compliance with standardised ISO 20022 communication formats for transmitting shareholder identification requests and examines the consequences of non-compliance.
- **Section 3.6** evaluates the quality of the data included in disclosure requests and in responses to those requests.
- **Section 3.7** investigates the use of indicators to identify disclosure requests falling within the scope of SRD II and the challenges posed by differing interpretations of how to use such indicators correctly.
- **Section 3.8** provides insights into the timeliness of responses to disclosure requests.
- **Section 3.9** contains information on the fees charged for processing disclosure requests and the related invoicing practices.
- **Section 3.10** examines the implications and consequences of non-compliance with shareholder identity disclosure requirements under SRD.

Fact-finding exercise on current practices

The detailed information on the functioning of the investor identification process included in this section is based on the findings of a comprehensive AMI-SeCo survey carried out in 2025. Some survey questions were addressed only to issuers/agents, others only to intermediaries, and others to both issuers/agents and intermediaries. In total:

- 20 AMI-SeCo markets took part in the survey (AT, BE, CY, DE, DK, ES, FI, FR, GR, HU, IT, LT, MT, NL, NO, PT, RO, SE, SI and SK);
- 22 entities responded in their capacity as issuer agents or issuer representatives;
- 57 entities replied in their capacity as intermediaries;
- 14 CSDs took part in the survey (some CSDs responded in their capacity as issuer agents, while others did so as intermediaries, e.g. as issuer CSDs).

The issues identified as a result of the survey are classified into separate sections of this report. For each issue identified, observed cases are listed in standardised tables. An example of such a table, showing observed cases pertaining to the issue “Receipt of responses before the record date” (as covered in Section 3.6.7), is given below. Reports received as part of the survey have been anonymised. Issues identified by responding entities are presented as individual cases.

Table A

How to read the tables in this section

Question to issuers/issuer agents: Have there been cases in your market where intermediaries responded to SI requests before the record date?							
Yes: 5; No: 15; N/A: 3; total replies: 23							
Case	Frequency of issue	Where were these cases observed?					
		Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
1	2%				CH, JP, AU, FR		
2	1%						✓ *
3	Less than 1%				GR		
4	Less than 1%				LT		

Note:

* Small entities within the custodial chain located both within and outside the EU.

Four cases are listed in the above table:

- Case 1 shows that, out of all the SI responses received by the reporting entity, 2% were received before the record date specified in the SI request. The reporting entity further indicated that it predominantly observed this issue in local custodians active in China, Japan, Australia and France.
- Case 2 shows that, out of all the SI responses received by the reporting entity, 1% were received before the record date specified in the SI request. The issue is reported as being observed mainly among other entities, generally custodians other than local and global ones; a tick mark (✓) indicates that the reporting entity did not specify the country/geographical area in which the custodian operates.
- Cases 3 and 4 both show that, out of all the SI responses received by the reporting entities, less than 1% were received before the record date specified in the SI request. Both cases are displayed in separate rows to highlight the fact that they were independently reported by two separate entities.

3.1 Scope of securities subject to disclosure requests

Securities falling within the scope defined by SRD II are (i) issued by a company whose registered office is in the European Economic Area (EEA); and (ii) admitted to trading, and listed on, an EEA regulated market (cf. Article 1(1)).

In practice, Member States have disclosure requirements that extend beyond listed shares (either stemming from national transpositions of SRD II or from local legislation unrelated to SRD II). For example, France's national disclosure requirements cover bonds, funds and UCITS, while Norway's apply to all types of equity instruments (listed and non-listed), as well as equity certificates.

As a result, some securities may be subject to disclosure requirements in certain jurisdictions, but not in others. In some cases, these differences create uncertainty among intermediaries as to whether there are legal grounds to disclose, given that such intermediaries may expose themselves to breaches of data protection rules by responding to requests that fall outside the legal scope of SRD II.

Furthermore, the SRD II approach of restricting investor identification to a specific type of financial instrument (listed shares) is not consistent with the objectives of the SIU. The nature of a given instrument, such as a debt instrument, should not constitute a limiting factor for the identification of investors (or for the enforcement of investor rights). From an operational standpoint, the investor identification process (transmitting information through the custody chain based on book-entry records) is, at its core, agnostic as to the type of security subject to a disclosure request.

The scope of SRD II should be revised so as to ensure that it is clear, simple and broad enough to cover all securities. The entry point for disclosure requests is the issuer CSD. In line with the conclusions set out in Section 2.1 of this report, it is therefore considered that any security issued through an EEA CSD should fall within the scope of the investor identification process. This would reduce the current levels

of ambiguity and complexity, as securities currently subject to national disclosure requirements would de facto fall within scope.

Measure 10: Ensure that any security issued through an EEA CSD is eligible for investor identification.

3.2 Authentication of disclosure requests

As the shareholder identification (SI) process involves the disclosure of personal data, intermediaries must verify that the SI requests they receive relate to securities falling within the scope of SRD II. This verification, referred to herein as “authentication of SI requests”, consists of:

- verifying whether the sender is authorised to request disclosure (covered in Section 3.2.1);
- verifying whether the security falls within the scope of SRD II (covered in Section 3.2.2).

3.2.1 Verifying whether the sender is authorised to request disclosure

As set out in the SRD II IR (Article 10(2)), “the intermediary who receives from the issuer or third party nominated by the issuer a request to disclose shareholder identity [...] shall verify that the request or information transmitted originates from the issuer.” In practice, this verification is carried out by any intermediary receiving information from an unidentified third-party sender. As SRD II allows issuers/agents to send requests directly to a specific intermediary in the chain (known as “targeted SI requests”), such verifications must be carried out, as the case may be, by:

- any intermediary receiving a request from the issuer or an agent (a targeted SI request) rather than from the preceding intermediary in the chain;
- the issuer CSD, where it receives an SI request from a third-party agent rather than directly from the issuer.

This verification is not required when an SI request is sent by the issuer (or its agent) to the issuer CSD and transmitted along the custody chain (from the first to the last intermediary), as a direct custody relationship is already established at every level of the chain.

The custody chain model ensures that information can flow securely among intermediaries, as the senders and recipients of information are known to each other at every level of the chain. Additional data disclosure risks emerge whenever information is transmitted outside the chain, such as in the case of targeted requests, as the recipient must verify that the sender is authorised to request disclosure. These concerns are reflected in the market practices reported by intermediaries taking part in the survey: some intermediaries have adopted the practice of

responding to SI requests only where such requests are received from a CSD, while several CSDs not acting as issuer agents refuse to disclose holdings to requesting issuers unless those issuers sign an agreement with them.

If the issuer CSD were always responsible for centrally verifying the legitimacy of requests, this would obviate the need for intermediaries in the chain to perform such often cumbersome and time-consuming verification tasks. This approach would also enhance clarity, as the authenticity of all requests would, by design, be verified exclusively by a single party, namely the issuer CSD. This would therefore eliminate current inefficiencies, whereby the authenticity of a single SI request is verified by multiple intermediaries in the chain, which may also result in delayed SI responses (see Section 3.8 for further details). In the AMI-SeCo fact-finding exercise, 11 entities across eight markets (DK, DE, ES, NL, NO, PT, FI and SE) reported experiencing such cases, as shown in the table below.

ID	To all participants: Do some intermediaries who do not receive an SI request directly from an issuer or issuer agent validate the issuer's identity (asking the sender for an LOA and a list of signatories)? Where are these cases most frequently observed? Yes: 11; No: 56; N/A: 2; total replies: 69					
	Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
1			DE *	DE *		
2		IT, DE, FR, UK, US	IT, DE, FR, UK, US	IT, DE, FR, UK, US	IT, DE, FR, UK, US	
3				DK, FI, NO, SE		
4					✓	

Note: * This happens every day, generally because German banks do not recognise the extension of SRD II in both France and Norway. They therefore request the LOA.

Measure 11: Require the issuer CSD to verify that the sender is authorised to request disclosure of the investor's identity.

Measure 12: Specify that intermediaries receiving investor identification requests from another intermediary (their securities account operator) should not verify whether the sender of the request is authorised to request disclosure.

Documentation used to verify that the sender is authorised to request disclosure

The SRD II IR and the SI Standards do not include requirements concerning the validation obligations incumbent on intermediaries upon receiving an SI request.

Validation obligations must be performed in line with local legislation, which creates significant complexity for issuers and intermediaries, especially in cross-border contexts (when the sender and the recipient of an SI request are not located in the same country). Owing to the absence of common requirements, intermediaries must

rely on a fragmented set of (often paper-based) documents to authenticate requests, often including, as reported in the survey:

- chamber of commerce extracts;
- commercial register extracts;
- articles of association;
- certificates of incorporation;
- company bylaws;
- lists of authorised signatories;
- letters of authorisation (LOAs);
- LEIs (verification by the intermediary that the issuer's LEI is active).

Checks are inherently manual and time-consuming, as they rely on physical documentation and signatures. Given that the requests on which such checks are performed are sent by issuers, agents or other financial intermediaries (and not natural persons), it is reasonable to expect these entities to be able to provide the information needed for authentication purposes in electronic format.

For SI requests received from a third party nominated by the issuer (issuer agent), local legislation in many markets requires the third party to provide a letter of authorisation (LOA) signed by the issuer in order to prove that it was engaged by the issuer to request information on its behalf. At a minimum, LOAs must include the contact details of the issuer and the signatures of two authorised signatories of the issuer. One issuer reported that intermediaries often request (or provide) customised documents, such as forms and LOAs in intermediary-specific formats.

Furthermore, in the survey, one issuer reported being asked to provide up-to-date powers of attorney (POAs), even though the legislation in the jurisdiction in which it operates does not require annual renewal or notarisation of POAs; other intermediaries require English translations of POAs.

In some countries, such as Italy, financial entities can only receive requests through the CSD platform, and the ability to access and send requests via this platform is considered equivalent to an LOA under Italian law.

Measure 13: Authenticate senders of investor identification disclosure requests on the basis of a harmonised set of requirements applicable to all jurisdictions and based on the provision of machine-readable documentation to facilitate automated and timely authentication.

3.2.2 Verifying whether a security is within the scope of SRD II

In addition to verifying whether the sender is authorised to request disclosure, the first intermediary must verify whether the security subject to the disclosure request is (i) issued by a company whose registered office is in the EEA; and (ii) admitted to trading, and listed on, an EEA regulated market. The AMI-SeCo fact-finding exercise shows that, in many markets, requests received from the depository network (i.e. issuer CSDs) are not subject to any further validation down the custody chain. A *modus operandi* common to many markets is for the issuer CSD to verify the scope of the request using its own reference data, set the SRD indicator to TRUE³ and transmit the request to their participants, which then process the request.

However, certain divergences can be observed in current practices:

- intermediaries that do not themselves verify whether a given request falls within the scope of SRD II rely on different entities to confirm that SI requests are within the scope of SRD II, namely the issuer agent, the CSD or the intermediary immediately above them;
- when receiving a request from the issuer CSD or first intermediary, some intermediaries check the value of the SRD indicator to process the request, whereas others check the ISIN, and others systematically process requests without conducting any checks.

To simplify and streamline the process, the issuer CSD should verify that the security on which a request is received falls within the scope of SRD II. This practice is already followed in many markets and is consistent with the measure set out in Section 3.2.1, namely that the issuer CSD should verify whether a sender is authorised to request disclosure.

Measure 14: Require the issuer CSD to verify whether a security for which a disclosure request is received is eligible for investor identification.

3.3 Targeted requests

Under the SRD II IR (Article 8(1)), the issuer can, on an optional basis, send an SI request directly to a specific intermediary, thus bypassing intermediaries further up the chain. In the SI Standards, these types of requests are referred to as “targeted SI requests” and should not be transmitted further down the custody chain by the receiving intermediary. To ensure that this is the case, a dedicated field included in the disclosure request messages (aligned with the requirements included in row A.3 in Table 1 of the SRD II IR) allows issuers to specify whether a request is to be forwarded to, and responded to by, other intermediaries further down the chain.

³ See Section 3.7 for more information on the usage of the SRD indicator.

The rates of targeted requests, expressed as a percentage of all requests sent by issuers or received by intermediaries, as reported by survey participants, are provided in the table below.

Question to intermediaries: What proportion (expressed as a percentage) do targeted SI requests represent of the total requests (targeted and non-targeted) you send as an issuer or receive as an intermediary?	
Role of the respondent in the custody chain	Comment
Issuer agent 1	Almost 0%. We have sent only one (1) targeted SI request as an issuer agent, which was concluded successfully, and have never received a targeted SI request as an intermediary/investor CSD.
Issuer agent 2	0%
Issuer agent 3	0%. In our market, SI requests are transmitted by the issuers to the issuer CSD and by the CSD down the chain.
Issuer agent 4	0%. SI requests are sent through the intermediary chain.
Issuer agent 5	0%
Issuer agent 6	0%. Our CSD does not send any targeted SI requests. If an issuer initiates an SI process, it is done via the CSD platform, which does not offer the option to select a specific market participant or intermediary.
Intermediary 1	30% on average.
Intermediary 2	12%. In our role as intermediary (investor CSD), 12% of requests are considered targeted. As issuer CSD, we are unable to determine whether certain requests are targeted because we are the first intermediary in the chain. While some cases of targeted requests were reported to us, it is difficult to quantify them.
Intermediary 3	Almost 0%. Next to no such occurrences have been observed in our market, with just one Irish company having sent a targeted SI request.
Intermediary 4	0%. All requests are received through the chain. We do not receive disclosure requests directly from the issuer.
Third party	Almost 0%. If only SRD II requests are considered, virtually no targeted SI requests are currently received. For all SI requests, it comes to about 15-20%.

Targeted SI requests are rarely utilised and require authentication by the receiving intermediaries, thus creating legal and operational uncertainty (as described in Section 3.2.1). In some markets, there even appears to be a lack of awareness of the possibility of sending targeted requests. Abolishing the option to send targeted SI requests would simplify the investor identification process and ensure that all SI requests are sent through the custody chain. As a result, the “forward” indicator would also no longer be relevant.

Measure 15: Abolish targeted investor identification requests.

3.4 SRD threshold

The SRD II (Article 3a(1)) gives Member States the option of applying a 0.5% threshold to SI requests, meaning that issuers can request the identification of only those shareholders holding at least 0.5% of shares.

When a threshold is applied, checking whether the figure given as a threshold is compatible with the national legal framework can only be performed by the issuer (agent) or the issuer CSD, as these are the only parties with complete information on the total number of outstanding securities (information needed to determine whether the request is under or above the applicable threshold, if any, in the given market). Therefore, checking whether the figure given as a threshold is compatible with the national legal framework adds significant complexity when processing such requests, particularly on a cross-border basis.

The presence of a threshold may also:

- disincentivise issuers from sending disclosure requests (one third-party service provider reported that, in its market, issuers do not request shareholder identification primarily due to the existence of a threshold);
- limit issuer engagement with an – often significant – number of investors with smaller holdings;
- pose challenges where issuers decide to use information obtained from disclosure requests to reconcile eligible investors, since the issuer would not be able to identify shareholders with holdings below the threshold.

Measure 16: Remove holding thresholds for investor identification requests.

3.5 Standardised communication formats

Under the SRD II IR (Article 2(3)), “the transmissions between intermediaries shall be made in electronic and machine-readable formats, which allows for interoperability and straight-through processing and which deploy internationally applied industry standards such as ISO or methodology compatible with ISO.” A set of five main ISO 20022 messages was introduced in 2020 specifically to support the processing of SI requests under SRD II.

The AMI-SeCo survey shows that many issuer agents and intermediaries are not yet able to process SI requests using the correct ISO 20022 reporting format. This creates significant problems for all parties in the chain and leads to breaks in straight-through processing. Given the importance of the disciplined use of ISO 20022 messaging to the efficient and effective functioning of the overall process,

there would be a need for greater precision with respect to messaging requirements in any future regulatory proposals in this field.

Measure 17: Require issuers and all intermediaries in the custody chain to communicate using the ISO 20022 standard.

3.6 Data quality

When responding to an SI request, intermediaries must provide a minimum set of data, as set out in Table 2 of the SRD II IR. The AMI-SeCo fact-finding exercise has revealed that providing incorrect data in response to shareholder identification requests is a major issue. Notably, errors were reported in every field of the SI response template covered in the survey. This section provides further information on the key issues observed.

3.6.1 Classification of shareholding type

Field C.10 in Table 2 of the SRD II IR requires intermediaries to classify the holdings of each identified shareholder into one of four distinct types. The four permitted shareholding types are specified in Table 2, with further guidance on their use provided in Standard 3.5, as set out below.

Shareholder Identification Standard 3.5: The (First) Intermediary shall respond to the SI Request to the address of the recipient of the response as indicated in the request with the number of shares held and shareholder identity information by type of shareholding as follows:

- shareholding on own account - used to report the Intermediary's own shares; nominee shareholding - used to report shares the Intermediary's client holds on behalf of another person;
- beneficial shareholding - used to report shares the Intermediary's client holds as beneficial owner;
- unknown - used when the type of shareholding hasn't been classified.

A total of 12 entities from six markets (DE, GR, ES, LT, NL and PT) reported that entities incorrectly classify the nominee, beneficial or owner status of their underlying shareholders. The issue is observed worldwide at both global and local custodian level and the proportion of SI responses containing incorrect classifications is concentrated within a range of 5% to 20%.

Question to issuers/issuer agents: Are there any intermediaries that incorrectly classify the nominee, beneficial or owner status of their underlying shareholders?

Yes: 12; No: 10; N/A: 1; total replies: 23

Case	Where were these cases observed?					
	Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
1	DE *	DE *	DE *	DE *		
2			DE, various non-EU countries **	GR **		
3			US, Europe	US, Europe	US, Europe	
4			US, HK, CN			
5				DE, AT, LU, HK, AU	DE, AT, LU, HK, AU	
6				PL, BG, LT ***		
7	CH					
8			Non-EU	Non-EU		

Notes:

* No classification at all; most underlying shareholders marked as "Unknown".

** Only in a few cases.

*** We occasionally observe intermediary mistakes where a "Nominee" has been wrongly classified as a "Beneficial owner".

The proportion of responses received in which the type of shareholding is disclosed as "Unknown" is shown in the table below, along with the corresponding intermediaries at the origin of the issue. The practice of failing to classify the underlying shareholder is particularly prevalent in the German market, where it was reported that 90% of SI responses received from German intermediaries were classified as "Unknown".

Case	Proportion of SI responses containing shareholding qualified as “Unknown”	Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
1	90% in the case of DE, except for the CSD		DE	DE	DE		
2	10-20%			US, CN, HK			
3	5%	CH					
4	5%				DE, AT, LU		
5	3.6%			CH			
6	(No data provided)			US, Europe	US, Europe		
7	Less than 1%						

Note: Not where the intermediary is from Italy; often where the intermediaries are not from Italy. While the issue is not common, some intermediaries always classify all shareholders as “Unknown” (likely owing to an ongoing technical issue and/or because they are unable to identify the shareholding type).

It should be noted that intermediaries must always be able to distinguish, in their books, accounts holding clients’ assets from the intermediaries’ own holdings. Therefore, except in exceptional cases (e.g. where the original investor is deceased and the shares were not transferred to another party), intermediaries should always know the type of ownership linked to their accounts, meaning that, in the vast majority of cases, there is no legitimate reason to classify holdings as “Unknown”.

Measure 18: Specify that investor identification requests received for accounts classified as nominee holdings (N) must be forwarded to the next intermediary, while requests for accounts classified as beneficial holdings (B) must not be forwarded to the next intermediary.

3.6.2 Unique identifiers of shareholders and intermediaries

The SRD II IR requires intermediaries to include unique identifiers (i.e. codes unique to the shareholder) in their SI responses so that issuers can unequivocally identify their shareholders. The unique identifiers used differ, depending on whether the shareholder is a natural or a legal person.

Unique identifiers for legal person shareholders

The SRD II IR requires intermediaries to include unique identifiers in their SI replies when identifying legal person shareholders (Table 2, field C.1(a)). These identifiers must be assigned according to three priority levels, based on the rule described below.

SRD II IR Annex, Table 2, field C.1(a) – Unique identifier of shareholder in case of a legal person

- (1) A unique national registration number preceded by the country code referring to the country of its registered office or LEI or
- (2) where neither a LEI nor a registration number is available, a Bank Identifier Code (BIC) preceded by the country code for its country of registration or
- (3) a client code, which uniquely identifies every legal entity or structure, in any jurisdiction, preceded by the country code regarding its country of registration

The AMI-SeCo fact-finding exercise focused on the usage of the LEI. The proportion of SI responses received in which the LEI of the shareholder is incorrect or missing, as reported by issuers, is given in the table below.

Case	What is the proportion of responses received in which the LEI code is missing?	Which intermediaries do not provide the LEI code as part of the SI response?					
		Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
1	93%			US, CN, UK	US, CN, HK, LU, CH, DE, FR, UK, NZ, NO, SG, SA		
2	92.55%		IT, DE, CH		ES		
3	70%		NL, BE, FR, IT, PL, DE, UK, US	NL, BE, FR, IT, PL, DE, UK, US	NL, BE, FR, IT, PL, DE, UK, US	NL, BE, FR, IT, PL, DE, UK, US	
4	50%			All markets	All markets	All markets	
5	45%			Most countries	Most countries	Most countries	
6	40%			DE, IT, FR, LU, US, UK	DE, IT, FR, LU, US, UK		
7	26%			UK, LU, US, CZ, HK, IE	HU		
8	1%			✓ (small entities)			
9	Less than 0.5%						✓
10	See * below			US, Europe	US, Europe	US, Europe	

Notes:

* The LEI codes are outdated in some cases, while in others, intermediaries fail to provide an LEI code in the information sent to the entities.

Additional comments: Natural persons do not possess an LEI, and not all legal entities have one either. When an LEI is provided, the reason some agents request the address of the reported account owner remains unclear. Additionally, reconciliation at the LEI level can be challenging if a branch uses the same LEI as its parent institution (e.g. a German branch of a French bank where the branch is the account owner).

Where a shareholder with "Nominee" status is identified, the LEI is always received, as it is mandatory. Where a legal person shareholder with "Beneficial owner" status is identified, either the LEI or the National Registration Number must be used as the identifier. The vast majority of responses to an SI request contain the National Registration Number as a shareholder identifier for legal persons.

Based on the survey replies, the following issues are observed:

- For shareholder identification purposes, there is significant heterogeneity across markets in terms of the identifier used. Some markets report that 92% to 93% of the responses to SI requests they receive do not contain the LEI as a unique identifier. In some other markets, the LEI is missing in 1% or less of the SI replies received.
- Some intermediaries reported that certain issuers/agents will not accept SI responses without an LEI, although some legal entities do not have LEIs and instead only possess other types of identifiers.

- The use of different identifiers among intermediaries creates consolidation and tracking issues for issuers/agents by (i) preventing the issuer/agents from consolidating the holdings of the same shareholder into a single position, and (ii) preventing the tracking of a shareholder position if the shareholder changes its custodian.

The flexibility to use different types of unique identifiers, as is currently the case under the SRD II IR, is seen as beneficial as it gives intermediaries a degree of flexibility when sending an SI reply even if a specific identifier was not provided by the intermediaries' clients. This is especially important given that different identifiers are used across markets.

Nevertheless, the multiplicity of unique identifiers makes it harder to consolidate holdings, necessitating the use of clear assignment rules. In that regard, treating both the national registration number (NRN) and the LEI as priority 1 identifiers under the SRD II IR creates unnecessary ambiguity. A single priority 1 identifier is therefore needed, with the LEI seen as the most suitable option for this purpose. By contrast, the LEI is the only identifier permitted for identifying the securities account operator (Table 2, field B.6). However, since not all legal entities possess an LEI, it may be appropriate to allow a more flexible approach based on the use of different identifiers for this purpose (as set out in Measure 19).

Measure 19: Modify the rules for assigning unique identifiers to legal person investors to reflect the following priority levels:

Priority 1: LEI

Priority 2: National registration number

Priority 3: BIC

Priority 4: Client code

Unique identifiers for natural person shareholders

Unlike legal persons, natural persons cannot obtain an LEI. The rules governing the assignment of unique identifiers to natural persons for shareholder identification purposes are not set out directly in SRD II, but derive instead from regulatory technical standards on transaction reporting to competent authorities (MiFID II/MiFIR). Accordingly, the SRD II IR requires the use of national client identifiers, as defined in the relevant transaction reporting rules⁴, as unique identifiers for natural persons within the SI process. The applicable national client identifier depends on the nationality of the shareholder and must be assigned according to a set of priority levels, as illustrated in Table B below.

⁴ [Commission Delegated Regulation \(EU\) 2017/590 of 28 July 2016 supplementing Regulation \(EU\) No 600/2014.](#)

Table B**National client identifiers for natural persons to be used in transaction reports**

ISO 3166 1 alpha 2	Country name	1st priority identifier	2nd priority identifier	3rd priority identifier
AT	Austria	CONCAT		
BE	Belgium	Belgian national number (Numéro de registre national – Rijksregisternummer)	CONCAT	
BG	Bulgaria	Bulgarian personal number	CONCAT	
CY	Cyprus	National passport number	CONCAT	
CZ	Czech Republic	National identification number (Rodné číslo)	Passport number	CONCAT
DE	Germany	CONCAT		

Note: As an example, this means that, for a Czech natural person shareholder, the national identification number must be used by the responding intermediary as the unique identifier (priority 1). If this is unavailable, their passport number (priority 2) should be used instead. If that is also unavailable, the CONCAT (priority 3) should be used.

While the applicable rules for determining unique identifiers may be well-suited to transaction reporting purposes, they do not translate well to investor identification. Within the SI process, the purpose of the unique identifier is strictly confined to distinguishing between individual shareholders (to facilitate data sorting and consolidation by issuers/agents). The unique identifier is not designed to determine a person's identity, as would be the case in know-your-customer (KYC) procedures or under other regulatory requirements. In this regard, passport and national identification numbers do not provide any specific added value in an investor identification context and create unnecessary data security concerns, particularly when combined with other issues identified in this report (such as where SI requests are sent by email or in paper format). The CONCAT in itself is not considered a suitable identifier, as the fact that it is constructed from a person's civil status means that the same CONCAT can be shared by several shareholders. Lastly, unique identifiers should not be assigned on the basis of the shareholders' nationality.

Measure 20: Define a unique identifier (or several identifiers, ranked in order of priority) specifically for the purposes of the investor identification process relating to natural person investors.

- Intermediaries should be able to generate the unique identifier using a single common method/identifier.
- The unique identifier should be inherently linked to stable personal attributes of the shareholder (first name, last name and date of birth) to ensure that it remains stable over time and does not depend on the reporting intermediary (national or intermediary-specific client codes should be avoided).
- The unique identifier should not contain unencrypted sensitive data (e.g. passport numbers).

3.6.3 Name of the shareholder

The SRD II IR states that the name of the shareholder is mandatory and must be provided in alphanumeric format (Table 2, field C.2(a)). For natural persons, the first name(s) and surname(s) of the shareholder must be included in separate fields.

The following table shows the proportion of SI responses received in which the name of the shareholder is either incorrect or missing, as reported by the issuers.

Case	Proportion of responses with incorrect shareholder name	With which intermediary type(s) does this issue typically originate?					
		Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
1	90%			✓ *			
2	75%	All markets	All markets	All markets	All markets	All markets	
3	70%	NL, BE, FR, IT, PL, DE, UK, US	NL, BE, FR, IT, PL, DE, UK, US	NL, BE, FR, IT, PL, DE, UK, US	NL, BE, FR, IT, PL, DE, UK, US		
4	25%			Most countries	Most countries	Most countries	
5	< 2%			CH			
6	1%						
7	Less than 1%						

Note:

* Common practice among the majority of participants.

The reported proportions of SI responses containing incorrect names vary significantly across reporting entities. One entity reports that 90% of the SI responses it receives from global custodians contain incorrect or missing shareholder names. In nearly half of the reported cases, the proportion of incorrect names reaches 70% or more and originates from intermediaries operating in all markets.

Notably, issuers/agents have different means of ascertaining whether a shareholder name is correct or incorrect:

- in some cases, scrambled or placeholder data are received from intermediaries (such as “Unknown” as name), or the names of defunct entities are provided (e.g. Credit Suisse, which is now legally known as UBS);
- in other cases, the name of the shareholder does not match the unique identifier provided (if any such identifier is provided at all).

Missing shareholder names and unique identifiers

For legal person shareholders for whom an LEI is provided but the name is missing, issuers may still use the LEI to access the company's full public details, including its name, since all this information is self-contained in the LEI. By contrast, for natural person shareholders, issuers cannot access the shareholder's name or contact details using the unique identifier (passport number, CONCAT, etc.). Therefore, in the case of natural person shareholders, the shareholder's name and the unique identifier are complementary, with the name serving as a practical label alongside the unique identifier.

Reconciling the LEI with the shareholder name

The LEI does not contain information relating to branches and business units of the legal entity concerned. Therefore, reconciliation based on the LEI alone can be challenging if a branch uses the same LEI as its parent institution.

In some cases, the shareholder name contained in the SI response exactly matches the name associated with the relevant LEI (same organisational level). In other cases, the name of the local branch is provided instead, which may differ from the name derived from the LEI. Clearer guidance on the name to be specified is needed, taking into account issuers' preferences towards one or the other approach (local branch name or strict LEI match).

Measure 21: Remove the explicit limit of 140 alphanumeric characters currently permitted for the investor name.

Measure 22: Provide clear guidance on whether the investor name included in the response to the investor identification disclosure request should be that of a local branch (with an explicit indication that the reported name relates to a local branch) or that of the parent company associated with the LEI (strict LEI match).

3.6.4 Reporting of investment funds

SRD II does not provide guidance on who the investor is in cases where an investment fund invests in in-scope SRD II securities issued in countries that consider the "legal owner" to be the end investor.

In such cases, the trust/unit trust (i.e. the investment fund) is generally understood to be the end investor, and the investor name should correspond to the name of the fund itself, rather than the name of the associated fund management company. In the AMI-SeCo fact-finding exercise, 11 out of 14 respondents indicated that most responses received from intermediaries contain the name of the fund rather than that of the associated fund management company.

Case	Estimated proportion of responses including the name of the fund management company vs the name of the actual fund	Which intermediary type frequently sends responses that include the name of the fund management company?					
		Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
1	60%/40%	HU		Several markets *	HU		
2	30%/70%		✓	✓			
3	5%/95%			NL, BE, FR, IT, PL, DE, UK, US	NL, BE, FR, IT, PL, DE, UK, US		
4	5%/95%			All markets			
5	20%/80%			DE, IT, FR, LU, US, UK	DE, IT, FR, LU, US, UK		

Note:

* e.g. UK, LU, US, CZ, HK, IE, AT, CY, DK, DE, JP, SK, NL, etc.

Measure 23: Require intermediaries to include the name of the fund, rather than the name of the associated fund management company, in their responses to investor identification requests.

3.6.5 Email address of the shareholder and the responding intermediary

Under the SRD II IR, shareholder contact details form part of the mandatory information to be included in SI responses. These contact details include the full postal address (Table 2, fields C.3-8) and, where available, the email address (Table 2, field C.9).

By contrast, the contact details of the responding intermediary do not form part of the information to be included in SI responses, although this information is included as an optional field in the ISO messages (field <CtctPrsn>).

The survey specifically focused on the provision of the shareholder's email address. The table below shows the proportion of SI responses received in which the shareholders' email address is missing, as reported by issuers.

Case	Proportion of responses missing an email address	Which intermediary type(s) typically omit an email address from the SI response?					
		Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
1	97%			US, CN, UK	US, CN, HK, LU, CH, DE, FR, UK, NZ, NO, SG, SA		
2	95%	All markets	All markets	All markets	All markets	US, Europe	
3	90%	EU *	NL, BE, FR, IT, PL, DE, UK, US	NL, BE, FR, IT, PL, DE, UK, US	NL, BE, FR, IT, PL, DE, UK, US		
4	(no data provided)			US, Europe	US, Europe	US, Europe	
5	90%			Most markets	Most markets	All markets	
6	90%			✓	✓		
7	85%			DE, IT, FR, LU, US, UK	DE, IT, FR, LU, US, UK		
8	65%			UK, LU, US, CZ, HK, IE	HU	All markets	
9	12.19%		IT, DE, CH		ES		
10	Less than 5%			Various non-EU countries	GR		
11	(no data provided)			US, Europe	US, Europe		

In nearly 80% of reported cases, no shareholder email address is provided for 90% of SI responses. The issue is reported as originating at all levels of the custody chain, particularly at custodian level, and among intermediaries operating throughout all of Europe and in the United States.

The current wording in field C9 of Table 2 – “Email address. If not available, this field is to be left unpopulated” – may create ambiguity and reduce the incentive for intermediaries to populate the field. This could partly explain the high rates of missing email addresses observed in the above table.

The email address of the responding intermediary, in addition to that of the shareholder, could form part of the mandatory information to be included in the SI response to enable the issuer to contact the intermediary as and when needed (this information is currently missing from Table 2 of the SRD II IR). In this context, the inclusion of group email addresses (i.e. email addresses shared by several members

of the intermediary's operational team) should be favoured to minimise the risk of having outdated addresses.

The use of email addresses as contact details offers the following advantages:

- an email address is contained within a single field (C.9), while the data structure of a postal address is spread across six fields (C.3-8), meaning that all six elements must be accurate in order to ensure proper delivery;
- it allows for immediate communication;
- it is more reliable and easier to trace;
- it would disincentivise issuers from using paper-based communication channels (consistent with other recommendations set out in this report).

Measure 24: Specify that the email address should be the preferred contact detail for communication between issuers and investors.

3.6.6 Number of shares

Field C.11 in Table 2 requires intermediaries to report the number of shares held by each identified shareholder. The table below shows the proportion of SI responses received in which the number of shares is incorrect, as reported by issuers.

Case	Proportion of responses with incorrect share amounts	What is the nature of the error?	At which intermediary type(s) does this issue typically originate?					
			Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
1	60%	Mainly incorrect quantity	All markets	All markets	All markets	All markets	All markets	Various non-EU countries
2	30%	Incorrect quantity, placement of decimals, negative quantities			Most countries	Most countries	Most countries	
3	10%	Incorrect quantity			DE, various non-EU countries	GR		
4	5%	Incorrect quantity						
5	3-5%	Placement of decimals			DE	DE		
6	1-5%	Incorrect quantity,			NL, BE, FR, IT, PL,	NL, BE, FR, IT, PL,		

Case	Proportion of responses with incorrect share amounts	What is the nature of the error?	At which intermediary type(s) does this issue typically originate?					
			Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
		negative quantities			DE, UK, US	DE, UK, US		
7	2-3%	Incorrect quantity				DE		
8	0.04%	Incorrect quantity (e.g. 0)				HU		
9	(no data provided)	Negative quantities	ES	All markets	All markets	All markets	All markets	

Based on the above cases, the median rate of SI responses containing incorrect share quantities is 5%. Global and local custodians operating in Europe are frequently identified as being the primary source of such reporting errors, especially in the German market. In cases where the proportion of incorrect quantities reaches 30% and 60%, the issue is reported as originating from intermediaries operating in most markets. The errors mainly relate to:

- incorrect quantities (in seven cases);
- negative quantities (in three cases);
- incorrect placement of decimals (in two cases);

It should be noted that cases of negative quantities and incorrect placement of decimals can only arise where the data are provided in free-text format (e.g. SI responses sent via email in PDF format). By contrast, the formatting restrictions on quantities of securities (Unit/FaceAmt) in ISO messages provide the necessary guardrails to prevent such errors.

Measure 25: Require intermediaries to perform data validation checks before responding to investor identification requests to prevent the transmission of incorrect or incomplete data.

3.6.7 Receipt of responses before the record date

The record date is the date set by the issuer on which the investor's identity is to be determined, based on the settled positions recorded by book entry in the books of the issuer CSD or another intermediary at the close of business. Any SI response received before close of business on the record date is considered invalid.

The table below shows the proportion of SI responses received before the record date, as reported by issuers.

Question to issuers/issuer agents: Have there been cases in your market where intermediaries responded to SI requests before the record date?

Yes: 5; No: 15; N/A: 3; total replies: 23

Case	Frequency of the issue	Where were these cases observed?					
		Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
1	2%				CH, JP, AU, FR		
2	1%						✓ *
3	Less than 1%				GR		
4	Less than 1%				LT		

Note:

* Small entities within the custody chain based inside and outside the EU.

A total of five entities from four different markets (DE, GR, ES and PT) reported cases in which local custodians (operating both within and outside the EU) responded to SI requests before the record date. The reported frequency of responses received before the record date is low (around 1%).

Measure 26: Ensure that intermediaries do not send investor identification responses before the record date specified in the investor identification request.

3.7 SRD indicator

The SI disclosure request message includes a Boolean indicator – the SRD indicator – providing information on whether the ISIN subject to the disclosure request falls within the scope of SRD II. The indicator should be set by the issuer CSD or the first intermediary. Any other intermediaries in the chain should then report the value of this indicator using the same value as that received from the preceding intermediary.

The SRD indicator can be set to TRUE or FALSE or left blank (unpopulated):

1. TRUE means that the request falls within the scope of SRD II and has been received from the issuer;
2. FALSE means that the request is to be treated as falling within the scope of SRD II, although the issuer CSD or first intermediary did not receive it directly from the issuer;
3. if the indicator is left blank (unpopulated), this means that the shareholder identification request falls outside the scope of SRD II.

The table below shows cases in which intermediaries respond to SI requests only where the SRD indicator is set to TRUE (which would be incorrect behaviour based on the rule described above). A total of ten entities from six markets (BE, DE, ES, IT, NL and PT) reported such cases.

Question to intermediaries: Have there been cases in your market where intermediaries responded to SI requests only where the SRD indicator was set to TRUE (noting that responses should also be provided when the SRD indicator is set to FALSE)? Which entities respond to SI requests only where the SRD indicator is set to TRUE? Yes: 10; No: 39; N/A: 9; total replies: 58						
Case	Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
1			US, Europe	US, Europe	US, Europe	
2	NL	NL				
3	BE	BE				
4				DE *		
5			Several		IT	IT

Notes:

* FALSE is never used. All requests originate from the issuer agent appointed by the issuer and are therefore set to SRD II TRUE. Whether these requests meet the SMPG rules is a separate matter. Some banks expect extended French or Norwegian securities not to carry the SRD II TRUE indicator and will otherwise refuse to process them on the grounds that they do not fall within the scope of SRD II.

Additional comments: As a CSD, we believe that the SRD indicator in the ISO messages, together with the SMPG recommendation regarding the use of the FALSE indicator, creates more confusion and leaves room for misinterpretation. We analyse the indicator, but give priority to our registry. Therefore, where the indicator is set to FALSE or left blank, we still respond if the instrument is an equity.

A clear understanding among intermediaries on the correct usage and interpretation of the SRD indicator is essential, given that many intermediaries process SI requests automatically based on the indicator's value. In line with the feedback received during the survey, further clarification is needed regarding the correct usage of the SRD indicator.

The main issue relates to the interpretation of the FALSE indicator, with some intermediaries (incorrectly) assuming that FALSE means that the SI request falls outside the scope of SRD II and therefore does not require a response.

This confusion may stem from the fact that the SRD indicator is used not only in the context of shareholder identification disclosure requests, but also in corporate event notification messages, where the following applies:

1. TRUE means that the corporate event falls within the scope of SRD II and that the notification/event information has been received from the issuer. Once the indicator has been set to TRUE because of an announcement received from the issuer CSD or the first intermediary, it cannot be changed back to FALSE;

2. FALSE means that the corporate event is intended to fall within the scope of SRD II, but the issuer CSD or the first intermediary did not receive the notification/event information from the issuer;
3. if the indicator is left blank (unpopulated), this means that the corporate event falls outside the scope of SRD II.

Greater awareness is therefore needed regarding the meaning of the FALSE indicator in the context of SI disclosure requests.

Measure 27: Promote awareness of the correct and proper use of the FALSE SRD indicator in investor identification disclosure requests.

3.8 Timeliness of transmission of requests and responses

This section covers the following two aspects:

1. **The timeline for transmitting investor identification requests to other intermediaries:** The SRD II IR (and SI Standard 1.8) requires intermediaries to transmit an SI request no later than the close of business on the same business day on which it is received or, where the request is received after 16:00, no later than 10:00 on the following business day (based on the local date and time of the receiving party).
2. **The timeline for transmitting responses to such requests:** The SI Standards require responses to SI requests to be provided on record date (RD) +1 or on the date on which the responding intermediary receives the SI request, whichever occurs later.

Transmission of requests

A total of 17 entities from ten markets (BE, DK, DE, ES, FR, HU, NL, NO, PT and SI) reported cases in which SI responses were not forwarded down the intermediary chain, as shown below.

Question to all participants: Have there been cases where intermediaries failed to forward SI requests to the next intermediary?

Yes: 17; No: 49; N/A: 3; total replies: 69

Case	How often do these cases occur?	Where are these cases most frequently observed?					
		Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
1	It happens every day.		All markets *	All markets	All markets	All markets	
2	10-20%			✓			
3	10%		US	US	US, Europe		
4	10%					✓ **	
5	5-10%		IT, DE, FR, UK, US	IT, DE, FR, UK, US	IT, DE, FR, UK, US		
6	In Spain, a huge majority of requests						
7	2%	DK, NO ***					
8	0-1% (recursively none)						

Notes:

* (1) In many cases, intermediaries claim not to have received a request, while the intermediary higher up the chain claims that they did forward it (each party asserts that the other is at fault, without attempting to resolve the issue). (2) In the Nordic countries in particular, some intermediaries do not support ISO20022 and are therefore unable to forward requests.

** A third party (appointed by the intermediary) failed to direct an issuer's request to a specific intermediary (targeted request).

*** The CSD does not accept inbound seev.045 notifications, which can only be submitted through internal systems. In such cases, the CSD did not process the request, but rather informed the sender of the procedure they had to follow.

The median proportion of SI requests not forwarded down the intermediary chain stands at 8.75%. One entity reported that this issue occurs on a daily basis and is observed all along the custody chain among entities operating in all markets. The issue concerns custodians operating in the United Kingdom, the United States and the EU (DE, FR, IT and, in particular, ES).

Transmission of responses

A total of 12 entities from seven markets (DE, GR, ES, LT, HU, NL and PT) reported cases in which SI responses were received after the deadline date communicated by the issuer, as shown in the table below.

Question to issuers/issuer agents: Were delays observed in receiving responses to SI requests observed, i.e. were some SI responses received after the deadline communicated by the issuer?

Yes: 12; No: 12; N/A: 1; total replies: 25

Case	Frequency of delays	Typical/average delay duration	From which entity type are late responses most frequently received?					
			Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
1	5-20% of responses, depending on the request	Anywhere from 1 day to 2 months		IT	IT, DE, FR, UK, US	IT, DE, FR, UK, US	IT, DE, FR, UK, US	
2	Very often	1-3 months			US		CH	
3	7-9%	3-7 days			FR, US, ES	FR, US, ES		
4	5-10%	5 days on average			UK, US, JP			UK, US, JP
5	Around 2-3%	1-2 days on average				DE	US	
6	2% of responses received after the market deadline	Local custodians: 10 days Investment banks/prime broker/broker-dealer: up to 3 months				Nordics, ES *		Global markets **
7	Not often; less than 2%	1-5 days after the response deadline			US, various non-EU countries			US, various non-EU countries
8	0.1%	2 days				CH, SG, FR, DE, AT		

Notes:

* Local custodians in the Nordic countries and Spain (while holding European securities across all markets, meaning that all requests are affected) mistakenly believe that they are only required to respond by the issuer deadline, as would be the case for a corporate action. This creates problems when the response subsequently proves to be inaccurate.

** Several investment banks/prime brokers/broker-dealers have not implemented ISO 20022 and instead respond by sending PDFs via email, sometimes weeks or months after the deadline and only after repeated chasing.

Based on the above cases, the median proportion of late SI responses stands at 5%. Late responses are received both from intermediaries active in Europe (DE, FR, IT and ES) and from those operating in non-EU countries (especially global custodians operating in the United States). Late replies are most frequently reported among non-EU intermediaries. Several investment banks, prime brokers and broker-dealers operating in global markets take up to three months to send their reply after the issuer deadline has passed.

SI requests left unanswered

A total of 14 entities across nine markets (DE, GR, ES, LT, HU, NL, PT, RO and SI) reported cases in which no SI responses were received from intermediaries, as shown in the table below.

Question to issuers/issuer agents: Have there been cases in your market where intermediaries failed to respond to SI requests sent to them?

Yes: 14; No: 10; N/A: 0; total replies: 24

Case	How often do these cases occur? (rate of missing responses)	For which intermediary type are these cases most frequently observed?					
		Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
1	10%		US mostly, EU occasionally	US mostly, EU occasionally			
2	10%		US, CH, various non-EU countries	GR			US, various non-EU countries
3	10%				US		
4	Between 5% and 10%			Mostly UK & US			Mostly UK & US
5	3-5%					US, Asia *	All markets
6	3%			DE, LU, CH, CZ	US		
7	(no data provided)		LU	AT, CH, CZ, DE, GE, IT, LU, PL			
8	Hard to estimate **		LU, CH	NL, CH, FR, DE, LU, US, CA	NL, CH, FR, DE, LU, CA, US		

Notes:

* US and Asian intermediaries, investment banks, prime brokers and broker-dealers.

** Among CSD participants, the response rate is 100%. The rate is hard to estimate along the intermediation chain down to the end investor, as it is sometimes difficult to reconcile and consolidate the missing answers. Since the custody chain stops at nominee level, other jurisdictions may be affected, although this remains unknown.

The median proportion of SI requests that go unanswered stands at 8.75%, which is consistent with the median proportion of SI requests that are not forwarded (also 8.75%). The failure to respond to SI requests is reported predominantly among US, Swiss and Asian intermediaries, investment banks, prime brokers and broker-dealers.

The issue of late or no responses is unlikely to be caused by overly stringent timing requirements under the SI Standards. Indeed, a minimum period of ten days is generally considered sufficient for an SI request to be transmitted down the chain and for intermediaries to respond.

A delayed SI response, or no response at all, is much more likely to stem from the (unfounded) perception among certain intermediaries that they are under no legal obligation to respond, particularly given the absence of consequences or sanctions if an intermediary fails to respond or responds late. It should be recalled that the SRD II rules have extraterritorial effect and apply to third-country intermediaries holding in-scope securities.

A number of survey participants stated that one possible means of enforcing the submission of SI responses would be for issuers to withhold corporate event proceeds where identification details are not provided.

Measure 28: Specify that the obligation to transmit onwards and respond to investor identification requests applies exclusively to requests submitted in a standard-compliant, machine-readable format.

3.9 Fees and invoicing

Under the SRD II (Article 3d), Member States have discretion as to whether fees may be charged for providing SI services. Where the charging of fees is permitted, the amounts charged must be (i) disclosed publicly, (ii) non-discriminatory, and (iii) proportionate to the costs incurred.

A total of 13 CSDs reported that, in their respective markets, intermediaries charge fees for processing SI requests, while 17 CSDs reported that no such charges apply. Meanwhile, five entities across four markets (DE, ES, NL and PT) reported instances in which intermediaries charged fees for requests to which they could not produce a response, as shown in the table below.

Question to all participants: Have any intermediaries charged fees for processing an SI request to which they could not produce a response? If so, for which entity type(s) were these cases observed? Yes: 5; No: 29; N/A: 8; total replies: 42						
Case	Issuer CSD	Investor CSD	Global custodian	Local custodian	Third party	Other entity
1			FR, DE *	FR, DE *		
2	DK, FI **		US, Asia ***			
3			FR			

Notes:

* We also feel that the fees are too high. The costs involved in implementing and sending the SI data via Swift do not justify charges of €300 per request, which is currently the case in Germany. We see only a few banks (four in France and three in Germany) charging costs. This number is negligible when compared with the total number of intermediaries holding EU securities. One can therefore argue whether charging costs is reasonable at all, as the vast majority of intermediaries do not charge any fee.

** Denmark and Finland do not respond, as they believe, based on their interpretation of SRD II, that they are under no obligation to do so. Norway does not reply via ISO 20022 because it provides issuers with access to a CSV register.

*** US and Asian banks do not believe that SRD II extends to them or believe that their local privacy laws take precedence over SRD II.

The practice of charging fees without producing a valid response is concentrated among a limited number of custodians operating in France, Germany, the United States and Asia. Issuer CSDs in Denmark and Finland were also reported as not replying to certain SI requests, owing to differing interpretations regarding the scope of application of SRD II (see Section 3.1). Additional feedback by issuers and intermediaries regarding invoicing and fees is provided below:

- Some respondents reported being charged disproportionate fees. In one instance, an intermediary reported being charged €50,000 for a single

response, as a result of being charged €0.08 per holder identified. The responding entity noted, however, that they were typically charged a flat fee of €200-300 per request.

- Some intermediaries believe they are entitled to charge even where the SI responses they produce are invalid, in the belief that there is a tolerance for the provision of incorrect data under SRD II.
- Issuers are informed of the fees charged to them only upon receiving the invoice. One issuer reported that, in many cases, an intermediary responds to an SI request but then invoices the issuer/issuer agent without any prior notice, thus preventing the latter from deciding in advance whether to accept the fee.
- Issuers/issuer agents do not always provide invoicing details or indicate whether they accept the fees charged by intermediaries.
- For cross-border SI requests, there is uncertainty regarding which national legal framework governs the charging of fees. It is unclear whether an intermediary in Country A, where charging fees is permitted, may legally impose charges on another intermediary or issuer in Country B, where charging fees is prohibited.
- In one market, invoices are sent in paper form by post.
- In some markets, such as Germany, national legislation allows intermediaries to request reimbursement of expenses incurred in processing SI requests. However, this process is manual for both intermediaries and issuers.

AMI-SeCo does not opine on the amounts charged, as such matters fall outside its mandate. However, beyond issues related to commercial practices, there is a lack of harmonisation in terms of invoicing format, the content of information exchanged and invoicing flows, where divergent practices both within and across markets have resulted in non-machine-readable invoice formats and unstructured workflows.

Measure 29: Ensure clear and upfront disclosure of fee information so that costs are known before an investor identification request is initiated, whenever fees are charged, alongside the usage of standardised electronic invoice formats.

3.10 Enforcement of SRD II

Issuers and intermediaries are required to comply with the rules set out in SRD II in relation to all requests that fall within its scope. These rules have extraterritorial effect and apply to third-country intermediaries holding in-scope securities.

Several survey respondents indicated that the lack of effective enforcement of SRD II has led to numerous instances of non-compliance, especially among intermediaries operating in third countries, and cited the following issues.

- Some intermediaries take the SI process lightly, as in their view they are under no obligation to respond or otherwise impose requirements that are not aligned

with SRD II. This is notably the case in Switzerland, where some intermediaries require the SI requests they receive to come directly from the CSD rather than recognising the right of authorised issuer agents to request the information on the issuer's behalf.

- There are no consequences or sanctions where a custodian fails to respond or responds late.
- Issuers have no means of verifying that the data provided by custodians are correct.
- Some third-party intermediaries claim that their local privacy laws take precedence over SRD II.

Measure 30: Consider the possibility of implementing stronger enforcement measures to drive further compliance with investor identification requirements.

Annex: Overview of measures

Table 1

Overview of measures to facilitate the exercise of investor rights

No	Measure	Related section
1	Extend the rights currently afforded to shareholders in equity instruments to investors in all types of financial instruments issued through European CSDs and enshrine those rights in an Investor Rights Regulation.	2.1
2	Introduce a harmonised definition of “end investor” as “the natural or legal person on whose account the securities are held with the last intermediary in the chain”.	2.1
3	Establish a requirement in the Investor Rights Regulation for an issuer (or its agent) to provide complete, standard-compliant corporate event data to the issuer CSD using the ISO 20022 standard as soon as such information becomes available.	2.1
4	Require the issuer CSD to make all corporate event data available without delay to all its investor CSDs and other CSD participants to ensure that the information reaches all investors in a timely manner regardless of where they hold their securities.	2.2
5	Define the complete set of standard-compliant data required from issuers for each corporate event and include these data requirements in the Single Rulebook for Corporate Events.	2.2
6	Establish a requirement within the Investor Rights Regulation for issuers of all instruments issued through EEA CSDs to adhere to the harmonised sequence of key dates for corporate actions and meetings, as set out in the market standards, to ensure consistent and uniform application across all markets.	2.3
7	Set the record date sufficiently early so that all investors holding securities on the record date are able to vote prior to the last intermediary’s deadline, thereby allowing end investors to vote based on their actual record-date positions rather than anticipated positions.	2.4
8	Include standards for the processing of meetings in the Single Rulebook for Corporate Events and monitor compliance with these standards as part of AMI-SeCo’s regular corporate events compliance monitoring exercise.	2.4
9	Ensure that harmonised processes for transaction management are consistently applied by all parties in the custody chain to protect the right of investors to receive corporate event proceeds and to participate in elective events.	2.5
10	Ensure that any security issued through an EEA CSD is eligible for investor identification.	3.1
11	Require the issuer CSD to verify that the sender is authorised to request disclosure of the investor’s identity.	3.2.1
12	Specify that intermediaries receiving investor identification requests from another intermediary (their securities account operator) should not verify whether the sender of the request is authorised to request disclosure.	3.2.1
13	Authenticate senders of investor identification disclosure requests on the basis of a harmonised set of requirements applicable to all jurisdictions and based on the provision of machine-readable documentation to facilitate automated and timely authentication.	3.2.1
14	Require the issuer CSD to verify whether a security for which a disclosure request is received is eligible for investor identification.	3.2.2
15	Abolish targeted investor identification requests.	3.3
16	Remove holding thresholds for investor identification requests.	3.4
17	Require issuers and all intermediaries in the custody chain to communicate using the ISO 20022 standard.	3.5
18	Specify that investor identification requests received for accounts classified as nominee holdings (N) must be forwarded to the next intermediary, while requests for accounts classified as beneficial holdings (B) must not be forwarded to the next intermediary.	3.6.1
19	Modify the rules for assigning unique identifiers to legal person investors to reflect the following priority levels: Priority 1: LEI Priority 2: National registration number Priority 3: BIC Priority 4: Client code	3.6.2
20	Define a unique identifier (or several identifiers, ranked in order of priority) specifically for the purposes of the investor identification process relating to natural person investors.	3.6.2

No	Measure	Related section
	Intermediaries should be able to generate the unique identifier using a single common method/identifier. The unique identifier should be inherently linked to stable personal attributes of the shareholder (first name, last name and date of birth) to ensure that it remains stable over time and does not depend on the reporting intermediary (national or intermediary-specific client codes should be avoided). The unique identifier should not contain unencrypted sensitive data (e.g. passport numbers).	
21	Remove the explicit limit of 140 alphanumeric characters currently permitted for the investor name.	3.6.3
22	Provide clear guidance on whether the investor name included in the response to the investor identification disclosure request should be that of a local branch (with an explicit indication that the reported name relates to a local branch) or that of the parent company associated with the LEI (strict LEI match).	3.6.3
23	Require intermediaries to include the name of the fund, rather than the name of the associated fund management company, in their responses to investor identification requests.	3.6.4
24	Specify that the email address should be the preferred contact detail for communication between issuers and investors.	3.6.5
25	Require intermediaries to perform data validation checks before responding to investor identification requests to prevent the transmission of incorrect or incomplete data.	3.6.6
26	Ensure that intermediaries do not send investor identification responses before the record date specified in the investor identification request.	3.6.7
27	Promote awareness of the correct and proper use of the FALSE SRD indicator in investor identification disclosure requests.	3.7
28	Specify that the obligation to transmit onwards and respond to investor identification requests applies exclusively to requests submitted in a standard-compliant, machine-readable format.	3.8
29	Ensure clear and upfront disclosure of fee information so that costs are known before an investor identification request is initiated, whenever fees are charged, alongside the usage of standardised electronic invoice formats.	3.9
30	Consider the possibility of implementing stronger enforcement measures to drive further compliance with investor identification requirements.	3.10

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PDF ISBN 978-92-899-7925-2, doi:10.2866/7148262, QB-01-26-168-EN-N